



**Order under Sections 31 / 69 / 88.2 / 89
Residential Tenancies Act, 2006**

Citation: Wang v Hawken, 2026 ONLTB 2154

Date: 2026-01-06

File Numbers: LTB-L-041567-25
LTB-T-085064-24

In the matter of: BASEMENT UNIT, 59 MOSS PL
GUELPH ON N1G4V2

Between: Xunyan (aka Sally) Wang
Hui Wu

Landlords

And

Philip Hawken

Tenant

LTB-L-041567-25 ('L2 Application'):

Xunyan (aka Sally) Wang and Hui Wu (the 'Landlords') applied for an order to terminate the tenancy and evict Philip Hawken (the 'Tenant') because:

- the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has substantially interfered with the reasonable enjoyment or lawful right, privilege or interest of the Landlords or another tenant;
- the Tenant, another occupant of the rental unit or a person the Tenant permitted in the residential complex has seriously impaired the safety of any person and the act or omission occurred in the residential complex.

The Landlords also claimed compensation for each day the Tenant remained in the unit after the termination date.

The Landlords also applied for an order requiring the Tenant to pay the Landlords' reasonable out-of-pocket expenses that are the result of the Tenant's failure to pay utility costs they were required to pay under the terms of the tenancy agreement.

The Landlords also applied for an order requiring the Tenant to pay the Landlords' reasonable out-of-pocket costs the Landlords have incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex.

LTB-T-085064-24 ('T2 Application'):

The Tenant applied for an order determining that the Landlords:

- substantially interfered with the reasonable enjoyment of the rental unit or residential complex by the Tenant or by a member of their household.
- harassed, obstructed, coerced, threatened or interfered with the Tenant.
- withheld or interfered with their vital services or care services and meals in a care home.

These applications were heard by videoconference on July 2, 2025, September 26, 2025, and November 28, 2025.

The Landlords, the Landlords' legal representative, Barrington Lue Sang ('BS'), and the Tenant attended on each of the hearing dates. The Landlords' witness, Adam Schmidt ('AS'), attended the hearing on September 26, 2025 and November 28, 2025.

Procedural History:

1. The L2 Application first came before me on July 2, 2025. I began hearing evidence, but the hearing was adjourned because there was insufficient time on that date to complete the hearing.
2. On July 3, 2025, the Tenant filed a request to have the T2 Application heard together with the L2 Application. I granted this request by Endorsement dated July 14, 2025.
3. The L2 Application and the T2 Application then came before me on September 26, 2025. On this date I heard the parties' submissions relative to two preliminary issues: the proper parties to the application, and the Tenant's request to amend the T2 Application.
4. Interim order LTB-L-041567-25-IN/LTB-T-085064-24-IN was issued on November 6, 2025. For the reasons set out in that interim order, the Landlord Hui Wu ('HW') was added as a Landlord party to both applications, and the Tenant's request to amend the T2 Application was granted only to add the allegation that the Landlords withheld or interfered with a vital service (heat) as of the date the request to amend was delivered (September 18, 2025), and to include the additional requested remedies of a rent abatement and that the Landlords cease withholding or interfering with a vital service. The balance of the request to amend the application was denied.
5. In the November 6, 2025 interim order, I also determined that the allegations in the T2 Application as originally filed were insufficient because the application did not include any dates or a detailed description of the alleged offensive conduct: see *Ball v. Metro Capital Property*, [2002] OJ No 5931, paras 10 & 12.

Preliminary Issue – November 28, 2025:

6. At the outset of the hearing on November 28, 2025, the Tenant said that he did not understand the interim order issued on November 6, 2025 relative to his request to amend the T2 Application. The Tenant said that he had since re-filed his amended T2 Application with additional dates and information included.

7. I explained the interim order to the Tenant. I also note that, although the Tenant is self-represented, he spoke with Tenant Duty Counsel before the hearings began on both September 26, 2025 and November 28, 2025. Information about how to contact the Tenant's local legal clinic for legal advice was also included in each of the notices of hearing sent to the Tenant by the LTB.
8. The request to amend the T2 Application that was denied was substantial in terms of the amount of new/additional allegations being made. The Landlords attended the hearing on November 28, 2025 prepared to proceed with the L2 Application and the T2 Application, as amended pursuant to the November 6, 2025 interim order.
9. If I were to grant the re-filed request to amend the T2 Application on November 28, 2025 it would cause significant delay, both because significant additional hearing time would be required, and the Landlord would need time to gather evidence and prepare to respond to a significant number of additional issues.
10. This delay would be extremely prejudicial to the Landlords, particularly given that the Landlords' application was scheduled for hearing on an urgent basis given the nature of their allegations. The prejudice to the Tenant of the re-filed request to amend being denied is far less significant than the prejudice to the Landlords of granting it, particularly because the Tenant is free to file a new application relative to the allegations he wished to add to this T2 Application.
11. Given the relative prejudice to the parties, and the fact that the Tenant is free to file a new application, I do not find that the amendment is significant enough to warrant the delay it would cause. While the Tenant may have made the new request to amend as soon as he knew the need for it was known (after issuance of the interim order), had he diligently sought legal advice in advance of filing the first request to amend, he could have known about the need to include dates/sufficient particulars the first time he requested an amendment.
12. While I accept that the Tenant made the re-filed request to amend in good faith, which is a factor militating toward granting the request, this factor is overwhelmed by the significant prejudice to the Landlords if the re-filed request to amend were granted.
13. The Tenant's re-filed request to amend was therefore denied. The hearing relative to the L2 Application and the T2 Application, as amended pursuant to the November 6, 2025 interim order, proceeded on November 28, 2025.

Determinations:

14. As explained below, the Landlords have proven on a balance of probabilities the grounds for termination of the tenancy and for some of their the claim for compensation in the application.
15. The Tenant was in possession of the rental unit on the date the application was filed.
16. As explained below, the Tenant did not prove the allegations contained in his application on a balance of probabilities. Therefore, the T2 Application is dismissed.

17. On May 7, 2025, the Landlord gave the Tenant an N5 notice of termination (the 'N5 Notice') and an N7 notice of termination (the 'N7 Notice').

18. The N5 Notice contains the following allegations:

- a) On October 11, 2024, the Tenant made an unfounded allegation that the Landlords, the main floor tenants, or another third party entered his unit and are interfering with his plumbing and water heater;
- b) On October 18, 2024, police attended the rental unit and discovered that the Tenant was hoarding in the rental unit;
- c) On March 4, 2025, the Tenant made an unfounded allegation that the water in the unit is unsafe to drink or bathe with, despite the results of a water test completed by the Landlord determining the water is safe;
- d) On March 10, 2025, police attended the unit because the Tenant had turned off the furnace, claiming there was a gas leak. Police inspected and found no gas leak;
- e) On March 12, 2025, police attended the unit because the Tenant denied the Landlords entry to conduct urgent repairs to the furnace;
- f) On March 14, 2025, police attended the unit because the Tenant had again turned off the furnace, claiming there was a gas leak. Police investigated and found no gas leak; and
- g) On April 4, 2025, the Tenant denied the Landlords entry to the unit to change the fire alarm.

19. The N7 Notice contains the following allegations:

- a) On February 12, 2024, the Landlords received complaints from the upstairs tenants that the Tenant was taking photos of their unit, encroaching on their space, and they were concerned for their safety due to the Tenant's conduct, which include allegations that the upstairs tenants were involved in causing damage to the Tenant's rental unit;
- b) On March 22, 2025, the Landlords received complaints from the upstairs tenants that there was a burning smell in the garage and upstairs rental unit. On review of security camera footage, the Landlords discovered the Fire Department had attended the residential complex at 5:00 a.m., and then found that the electrical panel in the garage was burned. The Landlord immediately contacted an electrician, and the Tenant refused to allow the electrician to access the basement unit. Police attended and access to the furnace was facilitated where the Landlords discovered that there was no power to the control board, but the Tenant would not permit repairs to be completed. On March 23, 2025, the Tenant contacted Reliance to schedule repairs. The Landlord then cancelled the Tenant's appointment and made her own appointment for the repairs the same day. Reliance discovered the transformer was damaged. The necessary parts for the repair were ordered and arrived on March 26, 2025, when the repairs were completed. The Landlords allege the upstairs tenants therefore suffered 5 days without heat because the Tenant

interfered with the Landlord's electrician's attempt to immediately attend to and repair the issue; and

- c) On April 28, 2025 the Tenant sent a text message to the Landlords to advise that he had turned off the furnace and the air conditioning switch. The Tenant also wrote that he would not turn the furnace back on and would not allow the Landlord access to do so. The Tenant made the unfounded claim that the airflow from the furnace and air conditioner smelled bad and the air was poisonous.

20. The Tenant's allegation in the T2 Application is that the Landlords are withholding or interfering with a vital service (heat) because, as of September 19, 2025 there was no heat in the unit and the Landlords refused to properly address this issue.

The Law

Substantial Interference with Reasonable Enjoyment or another Lawful Right, Privilege, or Interest

- 21. In the N5 Notice, the Landlords allege that the Tenant has substantially interfered with the reasonable enjoyment of the residential complex, or with another lawful right, privilege, or interest of the Landlords or another tenant. The N5 notice was given to the Tenant pursuant to section 64 of the Act.
- 22. Section 64 of the Act uses the word "substantial" to qualify the types of interference with reasonable enjoyment, or with a lawful right, privilege or interest, for which an N5 notice can be given. This means that conduct amounting to a mere annoyance or trivial incident will normally not justify service of an N5 notice of termination. It also uses the word "reasonable" to describe the enjoyment protected, meaning that the standard to be applied relative to allegations about reasonable enjoyment is not that of the particular landlord or other tenant before the LTB, but is that of the reasonable landlord or other tenant in similar circumstances: s. 64, *Residential Tenancies Act, 2006*; also see *TST-55210-14*, 2014 CanLII 58631 (ON LTB), para 32.
- 23. In the matter before me, the L2 Application is based on a "first" N5 notice given under section 64 of the Act and not a "second" N5 given under section 68 of the Act. The N5 Notice was therefore voidable. It would be rendered void if the Tenant, within seven days after receiving the N5 Notice, stopped the conduct or activity or corrected the omission described in the N5 Notice: ss. 64(3), *Residential Tenancies Act, 2006*.

Serious Impairment of Safety

- 24. In the N7 Notice, the Landlord alleges that the Tenant's conduct seriously impairs or has seriously impaired the safety of another person in the residential complex.
- 25. Unlike N5 notices given under section 64 of the Act, N7 notices alleging a serious impairment of safety under section 66 of the Act contain no curative provision. As the explicit wording of the Act states, to warrant termination of a tenancy, an impairment of safety must be serious. The notice period for this type of notice is also short, connoting the

seriousness of the conduct or omission that this type of notice is intended for: see s. 66, *Residential Tenancies Act, 2006*.

26. N7 notices are "... reserved for cases involving "weighty, grave, or momentous conduct' involving the actual impairment of safety or a *real risk* of impairment of safety [emphasis in original]: 2276761 *Ontario Inc. v. Overall*, 2018 ONSC 3264 (CanLII), para 12.

27. It is not necessary that a person has actually been hurt or injured, and a serious impairment of safety may include:

(i) the potential for an outcome that has the risk of a substantial negative effect on a person's well-being;

(ii) a foreseeable act or omission that could result in or may result in a serious impairment to safety; and

(iii) extremely loud and intense arguments could easily result in violence and would be a safety hazard.

Furr v. Courtland Mews Cooperative Housing Inc., 2020 ONSC 1175 (CanLII), para 17.

Withholding or Interfering with a Vital Service

28. The Tenant alleges that the Landlords breached section 22 of the Act, which states:

Landlord's responsibility re services

21 (1) A landlord shall not at any time during a tenant's occupancy of a rental unit and before the day on which an order evicting the tenant is executed, withhold the reasonable supply of any vital service, care service or food that it is the landlord's obligation to supply under the tenancy agreement or deliberately interfere with the reasonable supply of any vital service, care service or food. 2006, c. 17, s. 21 (1).

Non-payment

(2) For the purposes of subsection (1), a landlord shall be deemed to have withheld the reasonable supply of a vital service, care service or food if the landlord is obligated to pay another person for the vital service, care service or food, the landlord fails to pay the required amount and, as a result of the non-payment, the other person withholds the reasonable supply of the vital service, care service or food. 2006, c. 17, s. 21 (2).

29. "Vital service" is a defined term under the Act, and includes heat for the period September 1 to June 15 of each calendar year: ss. 2(1), *Residential Tenancies Act, 2006*; s. 4, *General*, O. Reg. 516/06.

30. For a landlord to be in breach of section 21 of the Act, they must have intentionally done something, or omitted to do something, to withhold or interfere with a vital service. This is distinguishable from a situation where a vital service is disrupted as a result of a maintenance issue, which would be covered by the Landlord's obligations under section 20 of the Act: ss. 20 & 21, *Residential Tenancies Act, 2006*. It is possible that a Landlord deciding not to address a maintenance issue knowing that the issue is impeding provision of a reasonable supply of a vital service would amount to a breach of section 21.
31. A landlord is not in breach of section 21 of the Act simply because they are unable to supply a vital service. It is the "reasonable supply" of vital services that landlords may not withhold or interfere with: *Onyskiw v. CJM Property Management Ltd.*, 2016 ONCA 477 (CanLII), para 52.

Burden of Proof

32. The Landlords and the Tenant bear the burden of proof relative to their respective applications on a balance of probabilities.
33. To prove something on a balance of probabilities, one must present sufficient clear, convincing, and cogent evidence to establish that it is more likely than not that something happened or a fact is true: *FH v. McDougall*, 2008 SCC 53 (CanLII), paras 44-46.

Evidence & Analysis

34. The rental unit is located in the basement of a detached house, containing two rental units. The tenancy commenced on March 1, 2017 (see lease at DOC-5886027, pp. 4-7).
35. The Tenant turned the furnace for the home off on March 10, 2025, March 12, 2025, March 14, 2025, and April 28, 2025. After the N5 Notice was served on May 7, 2025, the Tenant did not turn the furnace back on, and it remained off during the N5 Notice's voiding period (May 8-14, 2025). This was not disputed, and the N5 Notice was therefore not voided relative to the allegation about the Tenant switching the furnace off.
36. The Landlord believes that the Tenant repeatedly tampering with the furnace, and the use of multiple space heaters gradually damaged the home's electrical panel, which ultimately had to be replaced. The Landlord presented an invoice totalling \$2,570.75 for replacement of the electrical panel (DOC-5886027, p. 33). The Landlord said that the panel had to be replaced because of "overuse" of power, which caused it to become burned and damaged.
37. It may be that the Tenant's conduct caused damage to the electrical panel, but the Landlord did not present sufficient clear, convincing, and cogent evidence to establish it is more likely than not that the electrical panel was damaged by the Tenant using space heaters or because he turned the furnace off.
38. The electrician who attended to unit to inspect and carry out repairs was not present to give evidence. There was no written report from the electrician identifying the cause of the damage, and the invoice presented only states that the Landlords were charged for a service upgrade, from a 100 amp to 125 amp panel. The Landlord did present photos of the old and new electrical panels (DOC-5886027, pp. 142-148). SW explained that the

wire connectors that were burned in the photo of the old panel are connected to the basement. The Tenant said the burned circuit is actually for the dryer.

39. Even if I accept the Landlord's evidence that the burned circuits are for the basement, this does not prove that the Tenant caused this damage because he turned off the furnace or used space heaters. There was insufficient clear, convincing, and cogent evidence to establish it is more likely than not that the Tenant caused this damage.
40. The Tenant's position and evidence throughout the hearing was sometimes logical, but at other times hyperbolic, conspiratorial, and unreliable. As an example, the Tenant stated, without any cogent supporting evidence, that the Landlord actually replaced the electrical panel to "cover up electrical theft". I accept the Landlords' evidence that they replaced the panel because the original panel was damaged. The Landlords simply did not prove that the damage was caused by the Tenant as opposed to, for example, some latent defect in the home.
41. The Landlord presented letters from two tenants of the upstairs unit describing, among other things, the impact of the Tenant turning the furnace off and refusing to keep it on (DOC-5886027, pp. 132-134). Ultimately the upstairs tenants moved out because of the Tenant's conduct. This included living through a 5-day period in March 2025, during which the temperature outside was very cold, when the upstairs tenants did not have heat because of the Tenant's conduct (see DOC-5886027, p.57).
42. On March 9, 2025, the Tenant emailed HW, stating that he would be leaving the furnace off. He wrote that there is "... about 80 feet of duct tape on the outside of the furnace", and when the furnace runs it smells like vinegar, and that she could smell mercaptan. HW said he could seal the gaps, saying the air leaking from gaps around the furnace is the same as the air coming from vents throughout the home, but the Tenant insisted that the Landlords contact a professional (DOC-5886027, pp. 72-73).
43. When the Tenant claimed to have smelled mercaptan or other odours, the Landlords asked the upstairs tenants if they smelled anything. The upstairs tenants never said that they smelled these odours, nor did the Landlords on occasions that they entered the unit (DOC-5886027, p.81). Others, including police, the fire department, and Union Gas personnel have also entered the unit, and not smelled these odours.
44. On Monday, March 10, 2025 one of the upstairs tenants called police because the Tenant had turned the furnace off, and it had been left off over the weekend (DOC-5886027, p. 154).
45. On March 12, 2025, the Landlord had a technician attend the unit to repair the furnace. The Tenant believed that his unit was being tampered with, via the furnace. Police attendance was required to have the Tenant allow access (DOC-5886027, p. 162). On March 14, 2025, the upstairs tenants asked the Landlord if the repairs to the furnace were completed because their unit was still cold. The Landlords attended the upstairs unit with police, who confirmed that the furnace was not on, after confirming the thermostat was on and in working order. When police spoke with the Tenant, the Tenant confirmed that he had turned the furnace off. The Tenant said there was a strong smell of mercaptan in the utility room, so police entered the room, but could not detect the odour. Police turned the

furnace back on, went outside to fresh air, and then returned to the utility room, and confirmed there was still no odour (DOC-5886027, pp 155-156).

46. On March 16, 2025, the Landlords contacted police again, because they intended to enter the unit to conduct safety checks, including relative to fire alarms, but the Tenant advised that he would refuse entry (DOC-5886027, pp. 157-158).
47. Adam Schmidt ('AS') is a Fire Prevention Officer with the City of Guelph. On March 20, 2025, AS inspected the residential complex, and on March 31, 2025 he issued an Inspection Order because the smoke and CO detectors in the basement unit were not maintained in operating condition. The order required, the Landlords, by April 4, 2025, to ensure that the smoke and CO alarms in the unit were hardwired, interconnected, and operating as required (DOC-6881099, pp. 18-22).
48. Before the inspection date, there were wireless alarms installed, which the Tenant had removed. On the inspection date, the Tenant said he would reinstall them, which he did later that day.
49. The Landlords again contacted police on April 4, 2025 because the Tenant was refusing to allow HW to enter the unit to replace a smoke detector and conduct some necessary work on the furnace. In the police report relative to this date, the officer writes that "[a]t times, [the Tenant] has turned off the furnace in the winter time, believes he is being poisoned through the vents and ... seems paranoid" (DOC-5886027, pp. 160-161).
50. Because of these and other ongoing issues with the Tenant, the upstairs tenants moved out. There were 3 tenants in that unit, two of whom moved out at the end of April 2025, and the other vacated in early May 2025.
51. As of the hearing dates, the Tenant acknowledged the furnace was still off.
52. On cross-examination, SW reiterated that the furnace is in a good state of repair, and denied knowing of an issue involving "an inch" of dust inside the duct, which the Tenant alleged. She said the Tenant did not ever complain about there being an inch of dust in the duct.
53. The Tenant acknowledges that he has turned the furnace off and refuses to turn it back on, but takes the position that the Landlords are in fact interfering or withholding a vital service (heat). His position is that he had to turn the furnace off for his own health, and it is the Landlords' fault for not maintaining it.
54. The Tenant presented a photo he took of the vent in December 2024. In the photo the vent is dusty, part of the vent is open to floor joists, and there is a wire or cable going through it (DOC-6028106 – document is in file LTB-L-036645-25). The Tenant's description of the vent is accurate, though there was not an inch of dust as he suggested when he cross-examined SW.
55. The Tenant then made a bizarre assertion, stating that the vent is still dusty, and the Landlords somehow removed the dust depicted in the photo, and replaced it with "other dust". The Tenant said that this is how the Landlords are withholding or interfering with heat. He said he cannot turn the heat on because it would make him sick.

56. The Tenant then claimed that he cannot trust the work the Landlords do, and believes they are using some type of “spy device”. The Tenant presented a video showing that the hydro meters on the residential complex and the neighbouring home were both being worked on at the same time (DOC-5911920). He then alleged that the Landlords are conspiring with the owner of the neighbouring home to harass and attack the Tenant.
57. Specifically, the Tenant believes that the Landlords and the owner of a neighbouring property are “zapping” the Tenant with EMF radiation from their satellite dish and other devices. The Tenant said they have “devices” everywhere. There was no cogent evidence to support the Tenant’s bald allegations relative to this conspiracy.
58. The Tenant presented a photo of a circular pipe or vent, with a flap that is open in the photo (DOC-4631190). The Tenant said this is evidence that the Landlords are controlling the air supply to poison him by closing this flap, which he said is another reason he had to turn the furnace off. He also said he believes EMF radiation is coming through the vents.
59. These bald conspiratorial allegations are unsupported by any cogent evidence, are outlandish and not reliable, and lack an air of reality.
60. The Landlords have not re-rented the upstairs unit, as they cannot do so when the unit is not heated.

T2 Application:

61. I do not accept that the Landlords have done anything to intentionally withhold or interfere with heat. The unit has not been heated by the furnace because the Tenant turned it off. There were no recent photos of the inside of the vents presented (i.e. after December 2024), but it may be that the vents remain dusty. It is also more likely than not that the vents remain unsealed. These are maintenance issues, which could be addressed on a T6 application, but there was no clear, convincing, and cogent evidence to establish that the furnace could not safely heat the entire home if the Tenant were to stop switching it off. A reasonable supply of heat is available, and the Tenant is choosing not to use it.
62. I reject the Tenant’s unsupported evidence that the furnace/HVAC system needed to be shut off because the Landlords are poisoning the air in the unit, or because there is radiation coming through the vents. There was no cogent evidence to support the Tenant’s statements about these issues.
63. The T2 Application must therefore be dismissed.

L2 Application

64. The Landlords proved on a balance of probabilities that the Tenant turned off the furnace, as alleged in the N5 Notice and the N7 Notice, and has refused to turn it back on.
65. This conduct has substantially interfered with the reasonable enjoyment of the residential complex by other tenants (until they moved out because of the Tenant’s conduct), the Landlords, and with the Landlords’ lawful rights, privileges, and interests. This interference is far more than a mere annoyance or trivial incident on the standard of the reasonable tenant and landlord in similar circumstances.

66. I also find that the Tenant's conduct relative to his actions in turning off the furnace, causing the upstairs tenants not to have heat for the periods described above, amounted to a serious impairment of the upstairs tenants' safety. The Tenant's conduct was intentional, and deprived three people living in the upstairs unit of heat during times when heat is prescribed to be a vital service. This amounts to a foreseeable act that could result in or may result in a serious impairment to safety, and the potential for an outcome that has the risk of a substantial negative effect on a person's well-being.
67. I do not find that the Landlords proved their allegations that in February 2024 the Tenant was taking photos of the upstairs unit, that the Tenant was encroaching on the upstairs tenants' space, and that he alleged the upstairs tenants were involved in damaging his unit. There was not sufficient clear, convincing, and cogent evidence presented to prove these allegations. It is also not clear how or why these allegations would amount to a serious impairment of safety for the purposes of the Act even if the facts alleged were proven.
68. I also do not find that the Landlords presented sufficient clear, convincing, and cogent evidence to prove their allegations relative to the Tenant hoarding in the unit. There were no photos of the unit, there was no detailed and descriptive oral evidence from any witness relative to hoarding in the unit, and there was no other documentary evidence presented supporting the Landlords' assertion (for example, an order to comply from the Fire Department with respect to hoarding).
69. I do not find that the Landlords proved their case relative to the allegations in the N5 notice that the Tenant substantially interfered with the Landlords' reasonable enjoyment or lawful right, privilege, or interest relative to the Tenant making unfounded allegations about others entering the unit and interfering with his plumbing and water heater, or that the water is not safe to use for drinking or bathing. There was no evidence that any of this conduct occurred during the N5 Notice's voiding period. Since this was a first N5 notice given under section 64, the Landlords had the burden of proving on a balance of probabilities that the Tenant failed to correct this behaviour within seven days after the N5 Notice was given. The Landlords failed to do so regarding these allegations.
70. I do not find that the Landlords proved their allegation that the Tenant substantially interfered with their reasonable enjoyment or a lawful right, privilege, or interest by refusing the Landlords access to the unit on April 4, 2025 to change the fire alarm, as alleged in the N5 Notice. This is because the Landlords did not present sufficient clear, convincing and cogent evidence to establish that either a lawful 24-hour notice of entry compliant with s. 27 of the Act was given, or that this was an emergency not requiring notice. In the absence of an emergency or a valid notice of entry, the Tenant would be entitled to refuse entry.
71. As noted above, however, the Tenant did not void the N5 notice relative to the Landlords' allegation about turning the furnace off. The Landlord's application is granted with respect to the allegations in both the N5 Notice and the N7 Notice that the Tenant switched off the furnace.

Relief from Eviction

72. The Tenant's income comes from ODSP and a small eBay business that he operates.

73. I asked the Tenant about any circumstances that he thinks should be considered under section 83 of the Act, including whether eviction should be denied, or how long he would need to find other living accommodation if the tenancy is terminated. He said he would need a one year delay, because he does not want to rent other accommodation, and said he is not capable of living in a rooming house. He said he has “mental health issues” that make it difficult to find other appropriate accommodation. I asked him about the nature of his mental health issues, and the Tenant said he suffers from a lot of mental health issues which are caused by the Landlords.
74. Although I asked if the Tenant had any more specific evidence to present about his mental health issues, no clear and cogent evidence about this was given, and there was no medical evidence presented confirming any diagnosis.
75. I have considered all of the disclosed circumstances, and find that it would be unfair to deny eviction. It is clear that the Tenant does not intend to change his behaviour, and is committed to keeping the furnace switched off. This prevents the Landlords from re-renting the upstairs unit, would put anyone living there at risk, and also puts the Landlord’s property at risk. For example, there could be significant damage done to the home if pipes were to freeze in the home because the Tenant refuses to turn the furnace on.
76. I find it unlikely that the Tenant would comply with a term in a conditional order requiring that he not interfere with the operation of the furnace.
77. The Landlords’ position is that the eviction order should be expedited. I do not find that either this position, or the Tenant’s request for a one-year delay, would be appropriate. The Tenant may not want to rent a room as opposed to buying a home or renting an apartment, but there was no cogent evidence to establish that this is anything other than a preference, or that there is some legitimate reason why he could not rent a room, even if only for the short term. I accept that the Tenant has a limited budget, but that does not mean he cannot find any other place to live, or that his tenancy cannot be terminated. The Tenant needs a reasonable amount of time to find other accommodation, and this must be balanced with the Landlords’ need to recover possession to protect the physical integrity of their property and to be in a position to re-rent the upstairs unit.
78. In my view, eviction should be delayed to January 31, 2026. This will give the Tenant time to secure other accommodation.
79. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the ‘Act’), and find that it would not be unfair to postpone the eviction until January 30, 2026 pursuant to subsection 83(1)(b) of the Act.

Daily Compensation and Rent Deposit

80. The Tenant was required to pay the Landlord \$3,390.99 in daily compensation for use and occupation of the rental unit for the period from May 30, 2025 to November 28, 2025. All amounts that were paid for rent by or on behalf of the Tenant for this period is deducted from the amount owing.
81. Based on the monthly rent, the daily compensation is \$18.53. This amount is calculated as follows: \$563.75 x 12, divided by 365 days.

82. The Landlords incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
83. The Landlords collected a rent deposit of \$550.00 from the Tenant and this deposit is still being held by the Landlords. Interest on the rent deposit, in the amount of \$91.05 is owing to the Tenant for the period from February 2, 2017 to November 28, 2025.

Unpaid Utilities

84. The Landlords claim that the Tenant failed to pay costs for utilities he was required to pay under the lease. According to the lease, the Tenant is required to pay for electricity, water, and gas (DOC-5886027, p. 5). SW's uncontradicted evidence was that because there were a total of 4 tenants in the residential complex, the Tenant was required to pay 25% of these utility bills.
85. The Landlords presented the following invoices from Guelph Hydro/Alectra Utilities for electricity and water. SW said that the Tenant was asked to pay his portion of these bills and failed to do so (DOC-5886027, pp. 37-40):
- a) Bill dated January 10, 2025: \$194.08 (25% = \$48.52); and
 - b) Bill dated February 11, 2025: \$294.22 (25% = \$73.55).
86. The Landlords also presented the following invoices from Enbridge for gas. SW said the Tenant was asked to pay for his portion of these bills, but failed to (DOC-5886027, pp. 45-48):
- a) Bill dated January 24, 2025: \$145.23 (25% = \$36.30); and
 - b) Bill dated February 26, 2025: \$153.55 (25% = \$38.38).
87. The Landlords paid the invoices above. The Tenant presented no evidence that he paid any amount toward any of these invoices. I find that the Tenant owes the Landlords \$196.75 for unpaid utilities, as claimed in the application.

Compensation for Damage

88. In the application, the Landlords allege that the Tenant willfully or negligently caused damage to the unit and sought recovery of costs incurred to repair or replace the damaged property.
89. This is a claim under section 89 of the Act. Subsection 89(1) specifically states that the LTB has jurisdiction to order the reasonable costs that a landlord has incurred or will incur to repair or replace damaged property, where the property was damaged because of the tenant's willful or negligent conduct.
90. In the application, the Landlords claim a total of \$1,600.00 for compensation paid to upstairs tenants due to unavailability of heat. I accept that the Landlords incurred these costs, but these are not costs incurred to repair or replace any damage to the unit or residential complex. The LTB does not have jurisdiction to order this compensation under section 89 of the Act.

91. The Landlord also claims \$2,570.75 for the installation of the new electrical panel. For the reasons described above, the Landlords did not prove on a balance of probabilities that the electrical panel was damaged or destroyed because of the Tenant's willful or negligent conduct.
92. The Landlords also claim \$436.18 for heating and cooling repair. This was relative to the replacement of a transformer carried out by Reliance (see invoice at DOC-5886027, p. 32). There was not sufficient clear, convincing, and cogent evidence presented by the Landlords to prove that the transformer was damaged by the Tenant's willful or negligent conduct.
93. The Landlord's position was that the Tenant refused to allow their electrician immediate access to the unit, and he would have been able to repair the issue immediately. There was no cogent evidence to establish that the electrician would have been able to do so. The electrician was not present to give evidence about this, and there was no evidence beyond conjecture that the cost claimed was incurred because of the delay.
94. The Tenant switched the furnace off, but there was also no evidence that this would cause the transformer to fail.
95. The Landlords' claim for compensation for undue damage is dismissed.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated. The Tenant must move out of the rental unit on or before January 31, 2026.
2. If the unit is not vacated on or before January 31, 2026, then starting February 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
3. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after February 1, 2026.
4. The Tenant shall pay to the Landlord \$3,390.99, which represents compensation for the use of the unit from May 30, 2025 to November 28, 2025. Any amount paid by or on behalf of the Tenant for rent for this period is to be deducted from the amount owing.
5. The Tenant shall also pay the Landlord compensation of \$18.53 per day for the use of the unit starting November 29, 2025 until the date the Tenant moves out of the unit. Any amount paid by or on behalf of the Tenant for rent for this period is to be deducted from the amount owing.
6. The Tenant shall pay to the Landlords \$196.75, which represents the reasonable out-of-pocket expenses the Landlord has incurred or will incur as a result of the unpaid utility costs.
7. The Tenant shall also pay to the Landlords \$186.00 for the cost of filing the application.
8. The Landlords owes \$641.05 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Tenant.

9. The Landlords or the Tenant shall pay to the other any sum of money that is owed as a result of this order.

January 6, 2026
Date Issued

Mark Melchers
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on August 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.